

23NWCV01065 23NWCV01065

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 23NWCV01065 Hearing Date: July 30, 2026 Dept: P

MARIA DE LOS ANGELES CORDOVA v. SILVIO MANUEL HERNANDEZ

CASE

NO.: 23NWCV01065

HEARING: 07/31/2026 @ 10:30 AM

#15

TENTATIVE ORDER

Plaintiff Maria de Los Angeles Cordova's motion as to the appointment of a referee is CONTINUED to Friday, August 28, 2026 at 9:30 AM. The parties are instructed to submit briefing or declarations with the name of a referee by August 26, 2026.

Moving party to give notice.

Plaintiff Maria de Los Angeles Cordova (Plaintiff) moves to enforce a settlement agreement between the parties and to appoint a partition referee in accordance with the agreement.

Background

On April 6, 2023, Plaintiff filed this partition action against Defendant Silvio Manuel Hernandez (Defendant) and all persons presently unknown claiming any interest in the real property at issue, identified as Does 1 through 10. The complaint alleges Plaintiff and Defendant each own a one-half

interest as joint tenants in the real property at issue is commonly known as 10005 Birchdale Avenue, Downey, California 90240 (Assessor's Parcel No. 6363-013-010) (Subject Property). (Complaint, ¶¶ 2, 10.) The complaint asserts a single cause of action for partition of real property by sale.

On July 11, 2025, Plaintiff and Defendant appeared for trial and entered into a settlement orally before the Court.

On July 9, 2026, this matter first came on for hearing. The Court granted this motion in part and continued it in part. The Court continued the motion to today's date only "as to the issue of who the parties seek to appoint as referee. The parties are instructed to submit briefing or declarations with the name of a referee by July 27, 2026." (Order, 7/9/26.)

Discussion

As of today's date, there have been no filings regarding the parties' choice of referee. The Court therefore continues this motion as to the issue of appointing a referee again.

Accordingly, Plaintiff's motion is CONTINUED to Friday, August 28, 2026 at 9:30 AM, as to the issue of who the parties seek to appoint as referee. The parties are instructed to submit briefing or declarations with the name of a referee by August 26, 2026.